estimate of the loss expected to be incurred by the Bank in the event of non-payment of any monies by the Borrower, and the Borrower hereby acknowledges the genuineness and reasonability of the same.

c) The Borrower agrees that the determination of Interest by the Bank shall be final and conclusive and shall be binding upon the Borrower and a copy of the statement of accounts maintained by the Bank shall be conclusive proof and evidence of its liability.

2.4. Pre-closure:

a) In the event of Pre-closure, the Interest on the Loan would be calculated up to the actual date of Pre-closure subject to the terms and conditions and pre-closure charges as detailed in the Schedule hereto.

b) The PEMII, where applicable, payable before the commencement of the EMI shall be equal to the interest levied on the principal outstanding which will be computed on previous day of commencement of EMI.

2.5. Prepayment of Loan: The Bank may in its sole and absolute discretion and subject to the terms and conditions and prepayment charges as detailed in the Schedule hereto, or as the Bank may prescribe, permit prepayment of the Loan. In the event of the Bank permitting the Borrower to prepay the Loan, the Borrower undertakes and agrees to execute such documents as the Bank may require and abide by such amended/altered repayment schedule as specified by the Bank.

2.6. Additional Interest:

a) In the event of default on the part of the Borrower in making payment of the EMI or PEMII or any other amount due and payable under the Transaction Documents, as and when the same is/are due to be paid, the Borrower shall pay to the Bank Additional Interest at the rate mentioned in the Schedule. Such Additional Interest shall be payable on and from the date of default to and including the date on which such delay/default is rectified. The Bank's right to claim such Additional Interest shall be without prejudice to the Bank's right to take any other action available to it under the terms of this Agreement or at law in respect of such event of default.

b) On the occurrence of an Event of Default, the Borrower shall, without prejudice to the rights of the Bank to declare an Event of Default, pay on the outstanding Loan, Additional Interest, from the date of occurrence of the Event of Default till such time the Event of Default is cured.

c) Any interest accruing under this Clause shall be immediately payable by the Borrower to the Bank and shall constitute the Outstandings till the payment thereof.

d) The levy of Additional Interest under this Clause shall not prevent the Bank from declaring an Event of Default and shall not prejudice the exercise of any rights and remedies available to the Bank upon the occurrence of an Event of Default.

e) The Borrower acknowledges and agrees that the Additional Interest is reasonable and represents the genuine pre-estimates of the loss incurred by the Bank in the event of non-payment by the Borrower. Further, the Borrower confirms that the Loan provided under this Agreement is for a commercial transaction and the Borrower hereby waives any defence available under usury or other Applicable Laws relating to the charging of interest.

2.7. Conditions precedent for Disbursement of Loan:

a) The obligation of the Bank to make any Disbursement under this Agreement shall be subject to the fulfilment of the following conditions:

i) The Borrower shall have furnished certified true copies of the relevant incorporation and constitutional documents (as applicable) and resolutions, including any certifications in relation to the same as may be required by the Bank from time to time, and the Borrower shall have carried out any amendments thereto for availing the Loan, if so required by the Bank.

ii) The Borrower shall have furnished all authorization documents as required by the Bank.

iii) The Borrower shall have obtained all the requisite approvals/permissions/NOCs from Governmental Authorities required for implementation of the purpose for which the Loan is availed.

iv) If the Loan is to be secured by Guarantee, the Borrower shall cause the Guarantor(s) to execute and hand over to the Bank an irrevocable and unconditional Guarantee in favour of the Bank in such sum as stipulated by the Bank.

v) The Borrower satisfying the Bank's KYC requirements.

vi) Execution of this Agreement and all other relevant Transaction Documents as required by the Bank, including all Security Documents, and creation of a valid Security Interest in favour of the Bank (the Security Interest to be got registered with the Registrar of Companies and CERSAI, as may be applicable, within the prescribed period).

vii) Furnishing of any documents/ information and fulfilment of any condition, as may be required by the Bank.

b) In addition to the conditions precedent as specified in this Clause, the Borrower shall comply with such other conditions as specified in the Schedule hereunder, to the extent applicable.

2.8. Disbursement:

a) The Borrower shall be permitted to drawdown from the Loan subject to the Borrower handing over to the Bank such documents, as may be applicable to the Loan and required by the Bank. The Loan may be disbursed either in a single tranche or in multiple tranches.